

Article 22: Bylaw Amendment / Title IV, Art.1

Sec. 2 Protection of Parks

Sec. 11 Violations & Fines

Town Meeting 2026

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TMM Precinct 19

Park users are damaging Arlington parks. There are negligible consequences.

The Issue



McClennen



Turkey Hill

- Slide at McClennen

- Graffiti at Turkey Hill

- 5x5x3 Hole at Hill's Hill



Hill's
Hill



1

Cars have driven on playing fields

- Hill's Hill Soccer Field 3/11/26
- Magnolia/Thorndike



2

Treasure hunters have dug them up

3/14/26

Ballfield at Burns Arena



Hill's Hill Jump



aiming at low berm & high wall

What are the consequences for doing damage to parks per current Arlington bylaw?

A \$20 fine

Title IV, Article I, **Section 2.**

Protection of Parks

Article 22: Amend IV, 1, 2

Title IV, Article I, Section 2. Protection of Parks

Current bylaw does not reflect Arlington parks as they are today.

Section 2. Protection of Parks

No person shall injure, deface, dig up or displace, cut, break, remove, fill in, raise, destroy, or tamper with any road, walk, lawn or beach; or deface, defile, injure, destroy or ill use any building, bridge, structure, fence, sign, bench, seat, platform, plant, flower, bush, tree, shrub, turf, rock or other property or equipment, real or personal, belonging to the Town of Arlington under the jurisdiction of the Park Department, or have possession of any part thereof.

road, walk, lawn
or beach

Wellington Park



sign, bench, seat, platform,



Conjures images of a city park

The Reservoir



Shrub,
Tree....



McClennen



Wellington Park Courts

Courts, Fields & Playgrounds

Expensive court, field & playground surfaces need protection



Spy Pond Field



Naturalized Areas



Wooded Habitat at Menotomy Rocks



Trail in the Crusher woodlands



Majestic Rock Features at Turkey Hill

Valuable park habitats need protecting

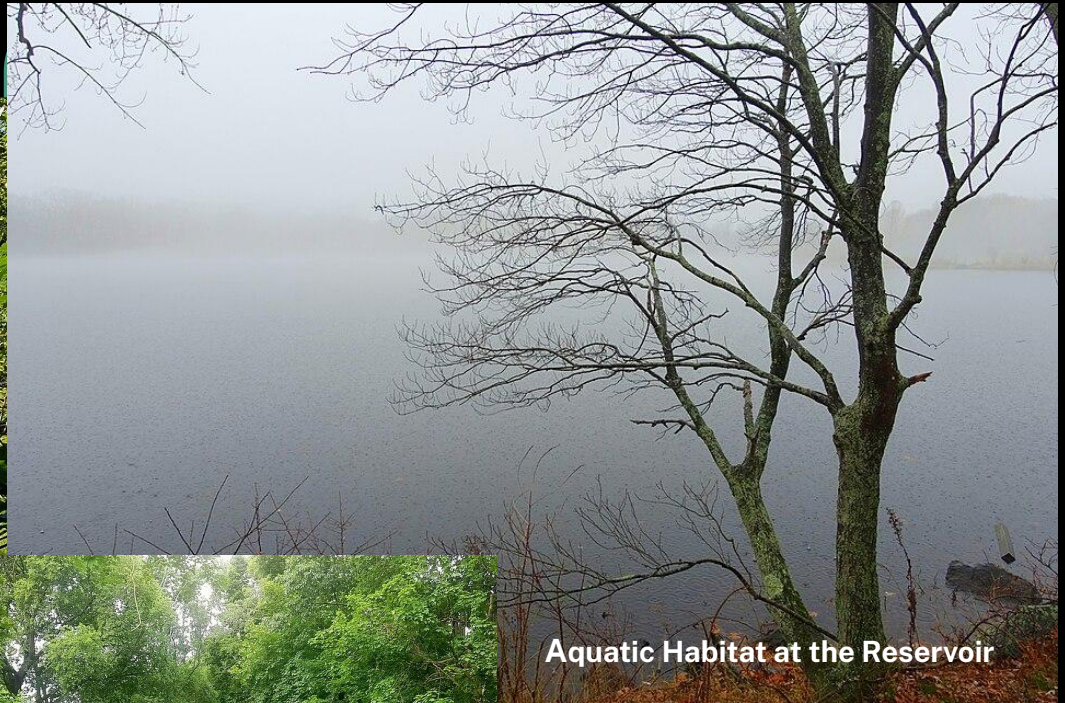


Aquatic
habitat &
shoreline

Hill's Pond - Menotomy Rocks Park



Meadow and Edge Habitat at Hill's Hill



Aquatic Habitat at the Reservoir

Park Habitats



Riparian area along Mill Brook - Wellington Pk.

Title IV, Article I, Section 2.

Creates a fuller picture of what to value and respect in Arlington parks

Warrant Article 22 - Proposed Amendments REVISED, with revisions following review (in green)

Section 2. Protection of Parks

No person shall injure, deface, dig up or displace, cut, break, remove, fill in, raise, destroy, or tamper with any road, walk, trail, lawn, soil, naturalized habitat, woodland, or beach; or deface, defile, injure, destroy or ill use any building or habitat, bridge, structure, fence, sign, bench, seat, platform, playing field, playground, or court surface, plant, flower, bush, tree, shrub, wildlife, turf grass, rock or other property or equipment, real or personal, belonging to the Town of Arlington under the jurisdiction of the Park Department, or have possession of any part thereof. **Damage due to normal wear and tear associated with the intended use of park property or equipment, real or personal, shall be exempt from Section 11 fines.**

Title IV, Article I, Section 11, Violations and Fines

Bump up fine for damaging parks to \$100, adding a fourth tier to the bylaw.

Section 11. Violation and Fines REVISED

ART. 30, ATM – 05/05/04)

Any person violating any of the foregoing, except Section 2, Section 3C or Section 4 and Section 8 shall be punished by a fine of not more than twenty (\$20) dollars. Any person violating Section 8. for each offense, shall be punished by a fine of not more than fifty (\$50) dollars. Any person violating Section 8. for each offense, shall be punished by a fine of not more than fifty (\$50) dollars. **Any person violating Section 2. for each offense, shall be punished by a fine of not more than one hundred (\$100) dollars.** Any person violating Section 3C or Section 4, for each offense, shall be punished by a fine of not more than three hundred (\$300) dollars.

Concerns heard ...

- Introduces some subjectivity/confusion about what's a violation
Remedy: Added exemption for normal wear and tear
- \$300 fine excessive - **Remedy:** Reduced fine to \$100
- Minors the likely violators
 - Photos showed damage due to adult actions.
 - Town Counsel: "Minors are named, legal guardians are responsible"
- Enforcement burdensome, no authority, no capacity/ budget
 - Enforcement is required for both the unamended bylaw and as amended; it's an administrative matter
 - not unique to Article 22 - an issue for all bylaws

Proactive Remedies ...

“Corrective action should take place through education.”

YES!

Education can best prevent misuse of park property.

- This article is an initial step toward education
- We all have a role to play in education: Town Staff, Commissions, Town Meeting Members, Residents

Title IV, Article I, Amend Section 2. Protections & Section 11 Fines

Thank you for
your support!